Temporary
3627

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6th, 1919, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, certain real estate now being held and administered by him as such Alien Property Custodian and heretofore, upon requirement conveyed, transferred, assigned, and delivered to him as the property of MARIE BROCKMÖLLER, of Germany, which said person he did after investigation determine to be an enemy within the purview of said Act as amended, which real estate is described as follows, to-wit:—

A one-half interest, subject to any dower right claimed by Fidelia G. Harpenau, in and to Lot 38, in the Borough of Brooklyn, City of New York, County of Kings, State of New York, at the Southwest corner of 86th Street and Bay 25th Street; a frontage on 86th Street of 96 feet 8 inches and a frontage on Bay 25th Street of 100 feet, known on Tax Map as Section 19, Block 6375, Lot 38;

And Lot 43 in the Borough of Brooklyn, City of New York, County of Kings, State of New York, situate on the west side of Bay 25th Street 120 feet south of 86th Street; having a frontage of 120 feet on Bay 25th Street and a depth on either side of 96 feet 8 inches known on Tax Map as Section 19, Block 6375, Lot 43; together with improvements thereon.

My reasons for the foregoing determination, order, rule and regulation are:

(*a*) Non-enemies own the other undivided one-half interest in said real estate and are desirous of sale for distribution of the proceeds among the parties entitled thereto, and have agreed to accept for their respective interests their proportionate part of the sale price of FORTY-SIX THOUSAND DOLLARS ($46,000).

(*b*) Said property is encumbered by dower rights belonging to a non-enemy who has agreed to commute the same and consents to said sale at said price.

(*c*) The price of FORTY SIX THOUSAND DOLLARS ($46,000) for the entire property appears to be adequate and is probably more than could be obtained at public auction.

(*d*) To sell the property by proceedings in Court for the purpose of distribution of proceeds would entail more expense and probably produce a smaller price than to accept the offer of FORTY SIX THOUSAND DOLLARS ($46,000), one-half of which is to be paid for the enemy interest in said real estate. In addition the proposed method will relieve the trust of said unnecessary expense, also of delay and inconvenience, which should be avoided.

WARREN G HARDING

THE WHITE HOUSE,
January 27th, 1922.

[No. 3627.]